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Referral No. 4065
June 16, 2026

LOCAL LAW NO. OF 2026
COUNTY OF ROCKLAND
STATE OF NEW YORK
(Introduced by: Hon. Jay Hood, Jr. and Hon. Lon M. Hofstein)
(Co-Sponsor: Hon. Alden H. Wolfe)

WOLFE/HOFSTEIN: UNAN.

A local law amending the Rockland County Charter.
Be it enacted by the legislature of the county of Rockland as follows:

Section 1. Legislative Intent.

It is incumbent upon us that we periodically review the County Charter with an eye to ensuring that it reflects the most basic tenets and foundational concepts for the smooth functioning of county government. To that end, the Rockland County Legislature believes that it is now necessary to make certain changes to the Charter in order to: 1) improve the efficiency of the annual budget process; 2) increase fiscal oversight; and 3) enhance the system of checks and balances between the branches of government which is so vital to our democratic way of life.

We hope that by making these changes we can ensure the transparency, responsiveness and effectiveness of county government and fulfill the promise of truly and fairly representing the interests of the residents of Rockland County.

Section 2. The following sections of the Rockland County Charter are hereby amended as follows:

Article I. Rockland County and Its Government

§ C1.01. Title and purpose.

This local law and all amendments hereto shall constitute the form of government for the County of Rockland and shall be known and cited as the "Rockland County Charter [~~Law~~]." Among the purposes of this law are the providing of county services and facilities with the highest degree of efficiency and economy, the securing of all possible county home rule, the separating of county executive and legislative functions and securing the economic and environmental health of the county.

§ C1.02. County status, powers and duties.

The municipal corporation now known as "the County of Rockland" shall continue to be a municipal corporation under the same name and with the same boundaries and shall have and exercise all of the rights, privileges, functions and powers and discharge such duties as are imposed or conferred on it by this **Charter** law or [~~an Administrative Code~~~~[1]~~] **local law** or [~~by~~] **other** applicable law.

§ C1.03. Effect of County Charter Law on state law.

Within the limits prescribed in Article 4 of the Municipal Home Rule Law, wherever and whenever any state law, general, special or local in effect, is inconsistent with this law or [~~an Administrative Code~~] **any County local law**, such **state** law shall be deemed to the extent of such inconsistency to be superseded by this law insofar as the County of Rockland and its government are affected.

§ C1.04. Effect of County Charter Law on local laws and resolutions.

Except to the extent inconsistent with this law or [~~an Administrative Code~~] **any subsequently passed local laws of the County**, all existing laws, acts and resolutions heretofore adopted by the Legislature of the County of Rockland shall continue in force until **expressly** amended, superseded or repealed as provided herein; provided, however, that Local Law Number Two of nineteen hundred and seventy-two and Local Law Number Eight of nineteen hundred seventy-four are hereby specifically repealed in their entirety.

§ C1.05. Effect of reapportionment.

In the event of any reapportionment of the Legislature by local law, general or special state law, court decision or order or otherwise, the County Legislature shall be the body provided for by such reapportionment, and all reference in this County Charter Law to the Legislature shall be deemed to be to such reapportioned Legislature.

§ C1.06. Definitions.

Whenever used in this law or any [~~Administrative Code,~~] **County** local law, legalizing acts or resolutions unless otherwise expressly stated or required by subject matter or context:

a. "Act" shall mean a local law or a resolution heretofore or hereafter adopted by the [~~Board of Supervisors or the County Legislature of the~~] [~~c~~]**C**ounty.

[~~b. "Administrative Code" or "code" shall mean any Administrative Code adopted by and for the county and all amendments thereto~~.]

[~~c~~] **b**. "Board**,**" **"Committee" or "Commission"** shall mean a body of persons appointed in the manner herein provided for purposes of studying and advising on matters of county interest. **By default, ex officio members of Boards authorized by the County Legislature, and their designees, shall count towards the quorum of the Board and shall be voting members.**

[~~d. "Committee" shall mean a body of persons appointed in the manner herein provided or pursuant to authority herein provided for the purpose of investigating, studying or reporting on matters of interest to the county.~~]

[~~e~~] **c**. "County" shall mean the County of Rockland.

[~~f~~] **d**. "**Rockland** County Charter Law" shall mean this law and all amendments hereto.

[~~g~~] **e**. "Department" shall mean [~~each of those~~] **a) a** unit[~~s of~~] **within** the Executive Branch of the county government**, the head of which is a Commissioner or equivalent position who reports directly to the County Executive, which department must be** provided for in this law **or any other law or resolution promulgated by the County Legislature; and b) the County Legislature**. **At the sole discretion of the County Executive, the County Executive may designate the Deputy County Executive and any Chief of Staff or position titled as a Director serving in the Office of the County Executive as authorized by the County Legislature as department heads, regardless of the scope of such employee's duties.**

[~~h~~] **f**. "Deputy" shall mean an officer of the county authorized to act generally for and in place of his or her principal. **Each head of a Department or Division, and the Clerk to the County Legislature, may appoint a deputy.**

[~~i~~] **g**. "Division" shall mean [~~a unit within a department as otherwise described in this law or the Administrative Code~~] **a) a part of the Executive Branch, the head of which reports to the head of a Department; or b) a part of the Legislative Branch, the head of which reports to the County Legislature or Clerk to the Legislature**.

[~~j~~] **h**. "Executive Branch" shall mean **the branch of government headed by the County Executive and including the Office of** the County Executive **and its divisions** and [~~those units~~] **every unit** of the county government [~~under his or her jurisdiction~~] **that is not the County Legislature or a department for which the County Legislature appoints the head. Notwithstanding the foregoing, the Executive Branch includes the Offices of the County Clerk, the District Attorney, the Sheriff, and the Board of Elections**.

i. "Legislative Branch" shall mean, the County Legislature, and any division thereof, including the Office of the Clerk to the County Legislature, and any other unit of government for which the County Legislature appoints the head, not including the Board of Elections.

[~~k. "Local law" shall mean a law adopted pursuant to this law in accordance with the power granted by the Constitution of the State of New York, the Municipal Home Rule Law or any other act of the State Legislature or provision of this County Charter Law.~~]

[~~l. "Officer" shall mean a person in the county government who has authority to exercise any county powers either in making, executing or administering laws of the county or laws of the state applicable thereto.~~]

[~~m. "Resolution" shall mean a legislative act other than a local law adopted pursuant to the provision of this County Charter Law.~~]

[~~n~~] **j**. "Unit" shall mean**:** [~~any part of the county government, including officers thereof.~~]

1. **any County Department, including divisions of that department or agency, and**
2. **the County Legislature, including the Office of the Clerk of the County Legislature, and any other division created as a division of the County Legislature.**

k. "Unit of appropriation" shall mean a line item in the County budget.

Article II. The County Legislature

§ C2.01. County Legislature; powers and duties.

The County Legislature [~~shall be~~] **is** the legislative, appropriating and policy-determining body of the county. The County Legislature [~~shall have~~] **has** and exercise**s** all powers and duties of the county, except as provided in this **Rockland** County Charter [~~Law~~], now or hereafter conferred by applicable law and any and all powers necessarily implied or incidental thereto. In addition to all powers conferred by the foregoing or other provisions of this law, the County Legislature shall have the power, among others:

a. To adopt by resolution all necessary rules and regulations for its conduct and procedure.

b. To make appropriations, levy taxes, incur indebtedness and adopt the budget.

c. To exercise all powers of local legislation in relation to enacting, amending or rescinding local laws, legalizing acts or resolutions, which shall all be binding upon the County Executive, the Legislature and all department heads.

d. To adopt, amend and repeal by local law an Administrative Code which shall set forth the details of administration of the county government consistent with the provisions of this law and which may contain revisions, simplifications, consolidations, codifications and restatements of special laws, local laws, resolutions, rules and regulations consistent with this law or amendments thereto.

e. By local law to create, alter, combine or abolish county [~~administrative~~] units **of government**.

f. To create and abolish positions and to fix the compensation of all officers and employees paid from county funds, except that the compensation of any elected official or official appointed for a fixed term paid from county funds shall not be changed during his or her term of office, except as in accordance with the provisions of the Municipal Home Rule Law.

g. To make or cause to be made such studies, audits and investigations as it deems to be in the best interest of the county and, in connection therewith, to obtain professional and technical advice, appoint temporary advisory boards of citizens in investigations, subpoena witnesses, administer oaths and require the production of books, papers and other evidence deemed necessary or material to such investigation, all in furtherance of its legislative functions.

h. To fix the amount of bonds of officers and employees paid from county funds.

i. To determine and fix real property tax equalization rates among the various taxing districts of the county for county purposes consistent with standards prescribed by the Legislature of the State of New York and file the same in accordance with applicable law.

j. To determine and make provision for any matter of county government not otherwise provided for.

k. To provide for the annual audit of the books and records of the county by independent auditors.

l. ~~To approve the execution of all contracts in excess of $100,000 entered into by the county~~. **To have its members hear and make decisions on appeals as provided for by local law.**

m. To approve any extensions of appointments to temporary positions with an annualized salary of $75,000 or more that were originally made by the County Executive for a period not to exceed seventy-five (75) days and that may subsequently be extended for up to seventy-five (75) days at a time with the approval of the Legislature. The failure of the Legislature to consider and either confirm or reject the extension within the seventy-five days (75) shall not result in the abolishment of the position without legislative action.

§ C2.02. Approval of local laws, resolutions and budget amendments by County Executive.

A. Every local law, resolution and budget amendment shall be certified by the Clerk to the County Legislature after its passage by such body and thereafter every such local law and resolution, except resolutions **pertaining solely to the operation and work of the Legislature, which are exempt. Such resolutions include but are not limited to:**

1. establishing or amending legislative rules, policies and procedures;

2. setting a date for a public hearing;

3. legislative grants given pursuant to state or federal authority including but not limited to New York State County Law §§ 224 and 225;

4. contracts signed by the chairperson or vice chairperson with vendors or for professional services solely on behalf of the Legislature;

5. non-binding memorializing resolutions expressing the sense of the County Legislature;

6. resolutions authorizing litigation by the Legislature against any other entity including governmental officials;

7. the confirmation or rejection of County Executive appointments; and

8. appointments vested solely in the Legislature by this Charter or local law~~,~~

~~[establishing the rules and regulations of the Legislature, the setting of a date for a public hearing, other matters pertaining solely to the conduct of its own procedures including the election of a Chairperson and Vice-Chairperson,]~~

B. **All legislation that is not so exempt** shall be presented to the elected County Executive within five days of such passage for approval [~~by him or her~~] **or disapproval**, except for budget amendments which are provided for in § C4.08 of this Charter.

1. If [~~such officer~~] **the County Executive** approves [~~it~~] **the legislation**, [~~he or she~~] **the County Executive may** [~~shall~~] sign it and return it to [~~such~~] **the** Clerk **of the Legislature**; it shall then be deemed to have been adopted.

2. If [~~he or she~~] **the County Executive** disapproves it, [~~he or she~~] **the County Executive may** [~~shall~~] return it to the Clerk with [~~his or her~~] **the** objections stated in writing, **within 21 days of its receipt from the Clerk**.

3. **Upon receipt,** [~~and~~] the Clerk shall present the [~~same~~] **disapproved legislation** with such objections to the County Legislature at its next regular meeting, and such objections shall be entered in its record, journal or minutes of proceedings.

4. The Legislature, within thirty days from the date of said regular meeting, may reconsider the same. If after such reconsideration such local law or resolution is adopted by a vote of at least two-thirds of the total voting power of the legislative body taken to the next highest whole number, it shall be deemed adopted.

5. Only one vote shall be had upon such reconsideration.

6. If, within twenty-one days after a local law or resolution shall have been presented to him or her, the County Executive shall neither approve it nor return it to the Clerk **disapproved and** with his or her objections, [~~it~~] **the legislation** shall be deemed to be adopted [~~in like manner~~] as if [~~he or she~~] **the County Executive** had signed it.

7. At any time prior to such adoption or to the return of a local law or resolution by the County Executive, as the case may be, the legislature may recall the same and reconsider its action thereon.

§ C2.03. Vacancies.

A. Vacancies which occur on the County Legislature shall be filled by appointment by the Legislature of Rockland County from among qualified electors of the legislative district from which the vacancy occurred.

B. A majority of the total voting power of the Legislature shall be required.

C. The appointment shall be made within thirty days after the vacancy occurs.

1. [~~If the appointment is not made within said thirty days, a special election shall be conducted to fill the vacancy within ninety days after the vacancy; provided, however, that if there shall be a general election within one hundred twenty days after said vacancy occurs, the vacancy shall be filled at the general election.~~] The person so appointed shall hold office **only** until the commencement of the calendar year next succeeding the first annual election at which the vacancy may be filled.

2. If the appointment is not made within said thirty days, a special election shall be conducted to fill the vacancy within ninety days after the vacancy; provided, however, that if there shall be a general election within one hundred twenty days after said vacancy occurs, the vacancy shall be filled at the general election.

3. **The person elected at such general election shall serve for the balance of the unexpired term.**

4. Any successor who shall be so appointed or elected shall possess all the qualifications required of members of the County Legislature set forth in this law.

§ C2.04. Officers and committees of the County Legislature.

A. On January first of each year or as soon thereafter as practicable, the County Legislature shall meet and organize by electing from among its members a Chairperson and Vice-Chairperson who shall serve for the balance of the year so appointed and such other officials as are deemed required. **The Chairperson has the discretion to appoint a Second Vice-Chairperson to fulfill the duties of the Vice-Chairperson as needed.**

B. The Chairperson shall appoint members of the County Legislature to serve on such committees as are provided by the rules of such Legislature.

C. The Clerk of the County Legislature shall preside at all meetings of the Legislature until such time as a Chairperson has been designated by election.

D. The failure to elect a Chairperson or appoint committee members shall not prevent the County Legislature from transacting its ordinary business.

E. In the event there is a vacancy in the position of Chairperson, the Vice-Chairperson shall serve as acting Chairperson until either a new Chairperson is elected or for the balance of the calendar year.

F. In the event there is a vacancy in the position of Vice-Chairperson **and Second Vice-Chairperson**, the vacancy shall be filled by majority vote of the full Legislature.

§ C2.05. Clerk to the County Legislature.

On January first of each year or as soon thereafter as practicable, the County Legislature shall appoint a Clerk who shall serve for the balance of the year so appointed and until a successor is appointed and has qualified, and, from time to time, the Clerk shall appoint at least one deputy and such additional personnel as are required. **The Clerk shall be the head of the Office of the Clerk of the Legislature.**

§ C2.06. Counsel to the Legislature.

A. On January first of each year, or as soon as practicable thereafter, the County Legislature shall appoint a Senior Legislative Counsel and may appoint additional Legislative Counsels as needed, all of whom shall serve for the balance of the year so appointed.

B. Any person so appointed shall, at the time of appointment and at all times during the term of office, be a qualified elector of the county and duly admitted to the practice of law in this state.

C. Legislative Counsel so named shall have the powers and duties delegated by the Chairperson of the Legislature that, at a minimum, shall include the ability to represent the County Legislature in any legal action brought by or against the County Legislature in any adjudicatory or judicial forum.

D. In the event the Chairperson of the Legislature does not wish the County Attorney to represent the Legislature in a specific matter or the County Attorney is barred from representing the Legislature due to a conflict as determined by the Chairperson, the Legislature shall be represented by Legislative Counsel or outside counsel as chosen by the Chairperson.

§ [~~C2.06~~] C2.07. Confirmation of appointments.

A. [~~1~~] Resolutions regarding appointments made by the County Executive, which require confirmation by the County Legislature, shall be presented to the Clerk to the Legislature within ten days of the appointment by the County Executive and at least ten days prior to the next scheduled full legislative meeting. If the Legislature fails to vote upon and either confirm or reject the appointment within sixty days from the first full legislative meeting that the appointment could have been considered, the appointment shall be deemed [~~confirmed~~] **rejected**.

[~~2~~] [~~Before being voted on by the full Legislature, every appointment shall be discussed in the appropriate legislative committee, whose Chair shall present the recommendation of the committee members to the full Legislature~~].

[~~3~~] [~~If a resolution to appoint fails to pass after a vote of the full Legislature within sixty (60) days from the first full legislative meeting that the appointment could have been considered, the appointment shall be deemed rejected with no further action by the Legislature.~~]

[~~4~~] [~~When an appointment is rejected by the Legislature, the same appointment may not be resubmitted by the County Executive without the approval of the Legislature.~~]

B. When the same person has been presented for an office and has been rejected twice by the Legislature, that person may not be resubmitted for the remainder of the County Executive's term.

Article III. Executive Branch

§ C3.01. County Executive.

There shall be a County Executive who shall be elected from the county at large for a term of four years beginning with the first day of January next following [~~his or her~~] election. At the time of [~~his or her~~] nomination and election and [~~throughout his or her term of~~] **while in** office, [~~he or she~~] **the County Executive** shall be a qualified elector of the county. [~~He or she~~] **The County Executive** shall hold no other public office and shall devote [~~his or her~~] full time to the duties of [**his or her**] office and shall receive therefor compensation to be fixed by the County Legislature, which shall not be decreased during [~~his or her~~] **the** term of office.

§ C3.02. Powers and duties.

A. It shall be the duty of the County Executive, subject to the provisions of this law, to supervise, direct and control the administration of all departments of the county government**.**

B. [~~and, subject~~] **Subject** to confirmation by the County Legislature, [~~he or she~~] **the County Executive** [~~shall~~] **may** appoint a Deputy County Executive**.** [~~, the head of every county department and members of county boards and commissions, who shall serve at his or her [pleasure]~~ **discretion**~~, except as otherwise may be provided in this County Charter. He or she shall have no power of appointment with regard to Rockland Community College, Rockland County Sewer District Number One, the Board of Elections, the Commissioner of Jurors, or any elective officer, except as provided in this local law.~~]

C. The County Executive shall have and be responsible for the exercise of all executive and administrative powers in relation to any and all functions of county government not otherwise specified in the Charter Law and have all necessary incidental powers to perform and exercise any of the duties and functions specified herein or lawfully designated to the County Executive.

D. In addition to any other powers and duties otherwise provided, the County Executive shall:

a. Supervise and direct the internal organization and reorganization of each department or other administrative unit in the Executive Branch, the head of which he or she has power to appoint.

b. Be the chief budget officer of the county and present to the County Legislature the annual budget as provided by law and, at the close of each fiscal year or as soon thereafter as practicable, a report of the financial and other transactions of the county, including the reports of the several departments of the county government.

c. Designate, subject to the approval of the County Legislature, one or more depositories located within the county for the deposit of all monies received by the Commissioner of Finance of Rockland County.

d. Examine and approve or disapprove the sufficiency of sureties on official bonds and undertakings.

e. To appoint people to temporary positions with an annualized salary of $75,000 or more for a period of up to seventy-five (75) days without the approval of the Legislature. Temporary appointments may be extended for up to an additional seventy-five (75) days at a time with the approval of the Legislature.

f. Perform such other duties and have such other powers as may be prescribed for him or her by local law, resolution or Code provision of the County Legislature and to provide for such internal audits which are necessary to [~~insure~~] **ensure** the proper operation of county government.

g. Have the power to veto acts of the County Legislature in the manner prescribed in § **C2.02** of this law; provided, however, that if the County Executive shall veto any changes duly adopted by the County Legislature in the budget presented by the County Executive, the County Legislature may override said veto in the manner prescribed in § **C4.08** of this law upon the affirmative vote of a two-thirds of the total voting power to the next highest whole number.

h. Appoint subordinate personnel in his or her office to positions which have been authorized and approved by the County Legislature. [~~It is not intended that any new positions shall be created or authorized in the office of the County Executive by the adoption of this local law.~~]

i. Determine what officers and employees may attend conferences, conventions and schools conducted for the betterment of county government, and authorize attendance at such conventions, conferences and schools as are authorized by law, provided there is money in the budget therefor.

j. Refund taxes erroneously assessed on the tax roll of any town up to the sum of [~~one~~] **five** thousand dollars **($5,000)**, upon the affidavit of the Assessor, or Assessors, and with the consent of the Supervisor of the particular town.

k. Authorize extension of sick leave for employees of the County of Rockland.

l. Authorize the use of real property of the County of Rockland by nonprofit and charitable organizations subject to any regulations concerning the use of said property adopted by the county.

m. Authorize connections to the central fire alarm system.

n. Recommend to the Legislature all persons for appointment to the Health Systems Agency upon the recommendation of the Health Systems Agency.

o. Execute all grant applications subject to the review of the County Attorney.

p. Upon the recommendation of the appropriate department head, execute, on behalf of the County of Rockland, any renewals of transfer or affiliation agreements, with any entity, provided that there is no cost to the County of Rockland.

q. Issue proclamations [~~jointly with the Legislature~~].

r. Direct the execution by the appropriate department head or heads of agencies of memorandums of understanding or agreements between departments or agencies of the County of Rockland for the purpose of providing services to county agencies and departments in order to meet the requirements of third-party payors, provided there is no cost to the County of Rockland.

s. Be chief administrative officer of the County of Rockland.

t. Look after the physical properties of Rockland County, exercise general supervision over county departments and coordinate the various activities of the county and unify the management of its affairs.

u. [~~Execute all contracts under the sum of $100,000, and with the approval of the County Legislature all contracts in excess of $100,000, and agreements and enforce all resolutions and orders of the Legislature of the County of Rockland.~~]

With the County Executive's Office, serve as the Tourism Promotion Agency for Rockland for purposes of any and all matching state funds.

v. Be the chief economic development officer of the county and be responsible for securing and maintaining a diversified economy sufficient to provide jobs for county residents and ratables to support necessary services.

w. Be the County Purchasing Agent and shall have the duties and responsibilities in connection therewith as prescribed by law. He or she shall appoint a Director of Purchasing to assist in carrying out said duties and responsibilities; provided, however, that this subdivision shall not become effective until the present office of County Purchasing Agent becomes vacant.

x. To execute and enforce the laws of the United States, the State of New York, pertaining to the affairs and government of the county, and the duly adopted resolutions and local laws of the County Legislature. [~~In addition to the powers set forth in this law, the County Executive shall have and be responsible for the exercise of all executive and administrative powers in relation to any and all functions of county government not otherwise specified in the Charter Law and have all necessary incidental powers to perform and exercise any of the duties and functions specified herein or lawfully designated to him or her.~~]

§ C3.03. Deputy County Executive and Acting County Executive: how designated; when to act.

[a] **A**. The County Executive [~~shall~~] **may** appoint a Deputy County Executive, subject to confirmation by the County Legislature, who shall hold office at the [~~pleasure~~] **discretion** of the County Executive.

1. To the extent authorized by the County Executive, the Deputy County Executive shall have the authority to act generally for and in place of the County Executive and undertake such other duties as the County Executive may require.

2. The appointment and confirmation of the Deputy County Executive shall be in the same manner as the appointment and confirmation of the heads of departments or other administrative units.

3. In the event that the County executive is temporarily unable to perform the duties of the office of the County Executive by reasons of absence from the County or disability, the Deputy County Executive shall exercise the powers of the office of the County Executive.

[~~b~~] **B**. In addition to the Deputy County Executive, the County Executive may designate in writing, with an order of succession specified, one or more appointive department or executive division heads to perform administrative duties of the County Executive at such times that the County Executive and the Deputy County Executive are temporarily unable to perform their duties by reason of absence from the county or disability.

1. The title of a person holding such office shall be Acting County Executive.

2. Such written designation shall be filed with the County Clerk and the Clerk of the County Legislature and may be terminated or superseded at any time by the County Executive by written notice of such termination or supersession filed in the same manner as the original written designation.

3. An Acting County Executive shall have and exercise all of the powers of the County Executive, except that the power of removal and the power [~~of veto of~~] **to disapprove** acts of the County Legislature shall not be exercised by the Acting County Executive until the County Executive and the Deputy County Executive shall have both been absent or disabled for fifteen consecutive days.

[~~c~~] **C**. During the simultaneous absence or disability of the County Executive, the Deputy County Executive and all of the designated Acting County Executives, or during the absence or disability of the County Executive at a time that no Deputy County Executive or Acting County Executive has been appointed or designated, the Chairperson of the County Legislature may designate the head of one of the county **executive branch** departments as Acting County Executive.

[~~d~~] **D**. The Deputy County Executive or Acting County Executive performing the duties of the office of the County Executive during the period of a vacancy shall continue to serve **only** until a new County Executive is appointed or elected and enters into office in the manner described in § **C3.05**.

§ C3.04. Removal of County Executive.

The County Executive may be removed from office in the same manner provided for in § 33 of the Public Officers Law for the removal of county officers.

§ C3.05. Vacancy in the office of the County Executive.

A. In the event of a vacancy in the office of a County Executive as described in § 30 of the Public Officers Law, such office shall be temporarily filled by the Deputy County Executive, or, if no Deputy County Executive has been appointed, or where the Deputy County Executive is unable to take up the office of County Executive for fifteen consecutive days following the vacancy by the County Executive, by the Acting County Executive, in order of succession.

B. **A Deputy or Acting County Executive** [~~, who~~] shall assume the office of County Executive until such office shall be filled by appointment [~~, by~~] **of** the County Legislature, of a qualified elector of the county.

1. The appointment shall be made within thirty days after the vacancy occurs.

2. If the appointment is not made within said thirty days, a special election shall be conducted to fill the vacancy within ninety days after the vacancy; provided, however, that if there shall be a general election within one hundred twenty days after said vacancy occurs, the vacancy shall be filled at the general election.

3. The person so appointed shall hold office by virtue of such appointment until the commencement of the calendar year next succeeding the first annual election after the happening of the vacancy at which a successor can be elected, at which election a County Executive shall be elected for the balance of the unexpired term, if any.

4. The Deputy County Executive or Acting County Executive designated in the manner prescribed in § **C3.03** hereof shall serve during any vacancy in the office of County Executive **only** until such vacancy is filled.

§ C3.06. Appointments [~~of County Department Heads~~].

[a] **A.** **Subject to confirmation by the County Legislature pursuant to § C2.07,** [~~The~~] **the** County Executive shall appoint **members of all county boards and commissions, except as otherwise provided for by law, and the heads of departments and divisions as shall be listed in separate legislation.** [~~all department heads, subject to confirmation by the Legislature,~~]

B. **All department and division heads and all county board or commissions members** [~~who~~] shall serve at the [~~pleasure~~] **discretion** of the County Executive unless otherwise provided by this Charter or local law. **Where there is a term of office provided by this Charter or local law, if a vacancy shall occur otherwise than by expiration of term, it shall be filled by appointment for the balance of the unexpired term by the County Executive, subject to legislative confirmation.**

C. All department heads shall devote his or her full working time to the duties of the office, unless they work less than full time.

[~~b~~] **D.** All [~~appointed~~] department heads shall have all obligations and liabilities heretofore or hereafter lawfully granted or imposed by this Charter, [~~Administrative Code,~~] local law, or resolution of the County Legislature or any applicable provision of any act of the State Legislature not inconsistent with this Charter or local law.

E. Subject to the scope of powers allocated to each branch of government, all department heads and members of boards and commissions are obligated to perform such other related functions as the County Legislature or the County Executive may designate in order to implement and accomplish the policies and responsibilities the County Legislature has prescribed.

Article IV. County Budget

§ C4.01. Fiscal year.

The fiscal year of the county shall begin with the first day of January and end with the thirty-first day of December in each year. Rockland Community College shall be governed by and follow the procedures contained in the Education Law of the State of New York.

§ C4.02. Duties of County Executive.

It shall be the duty of the County Executive to prepare and file the county budget for each fiscal year in accordance with [~~the provisions of the County Law~~] **this law**. The County Executive shall have the power, personally or through his or her representatives to survey each unit for the purpose of ascertaining its budgetary requirements.

§ C4.03. [~~Departmental estimates.~~ RESERVED

~~The head of each department, office or unit of county government shall submit to the County Executive, in writing, an estimate of expenses and revenues of such department, office or agency for the ensuing fiscal year. Such estimates shall consist of proposed units of appropriation for personal service and proposed units of appropriation for other than personal service. Each requested unit of appropriation shall be supported by line items showing how the total amount of such unit is arrived at. Such estimates shall be known as departmental estimates and shall be in such form and contain such other information as the County Executive shall require. They shall be public records and shall at all reasonable times be open to public inspection.~~]

§ C4.04. Submission of county budget.

[~~1~~] **A.** On or before the first day of October in each year, the County Executive shall submit to the Clerk to the Legislature, for consideration by the County Legislature, and simultaneously submit to any other governmental entity required by local or state law to receive a copy, a proposed expense and capital budget for the ensuing fiscal year and a proposed capital program for the next six fiscal years or such other period as may be authorized by law, together with a budget message as provided in § **C4.05**. Upon their submission, the proposed expense and capital budgets, hereinafter called the county budget, together with the budget message, shall become public records in the office of the Clerk for distribution.

[~~2~~] **B.** The proposed county budget shall be in three sections, one of which shall set forth the estimated revenues and receipts, one of which shall set forth the estimated expenses, and one of which shall set forth proposed capital authorizations and expenditures. The proposed county budget shall present the complete financial plan for the county and its agencies for the ensuing fiscal year, setting forth proposed expenditures and anticipated revenues, debt service, down payments and other current capital financing and proposed borrowing, if any. An estimate of unencumbered balances at the end of each completed fiscal year, except when otherwise provided by law or appropriated for a capital improvement or other authorized continuing project, shall be treated as revenue for the county budget of the ensuing fiscal year.

§ C4.05. Budget message.

The County Executive shall submit with the county budget a budget message explaining the main features of the county budget, including a general summary thereof, with such supporting schedules as he or she may deem desirable or the Legislature may by resolution require any information identifying and analyzing new or changed programs. Such schedules shall exhibit the aggregate figures of the proposed budget in such manner as to show a balanced relationship between the total estimated expenditures and the total estimated income for the ensuing fiscal year and shall compare these figures with the actual receipts and expenditures for the last completed fiscal year and the appropriations for such fiscal year. The budget message shall also outline the existing and any proposed financial policies of the county relating to the capital program, describing each capital improvement proposed to be undertaken in the preceding fiscal year and not yet completed. The budget message shall contain such additional information or comments as the County Executive may deem appropriate.

§ C4.06. Review of county budget and budget message.

The Legislature or a committee designated by it may review and hold hearings on the proposed county budget and the budget message and may require the attendance of the heads of units or their representatives to produce such records and information in explanation of their departmental estimates as the Legislature shall deem appropriate.

§ C4.07. Public hearing on county budget.

Not later than the twentieth day of November of each year, the Legislature shall hold a public hearing on the proposed county budget, the budget message submitted by the County Executive and any report submitted by the Legislature or the committee designated by such body. The Clerk to the Legislature shall cause to be published, in the official newspaper of the county and such other newspapers as may be designated by the Legislature, a notice of the place and time when such hearing shall be held, the purpose of the public hearing, a concise summary of the proposed county budget, and that copies of the proposed budget, the budget message and any report submitted by the Legislature or its committee are available at the Clerk's office and may be inspected or procured by any interested person. At least ten days shall elapse between the publication of such notice and the date so specified for the hearing. At the hearing, any person may be heard, and the hearing may be adjourned from day to day, but not later than the twenty-first day of November.

§ C4.08. Adoption of county budget.

A. [1] After the conclusion of the public hearing, the Legislature may strike items of appropriation or anticipated revenue from the proposed county budget or reduce items therein, excepting appropriations required by law for debt service. The Legislature may add items to or increase items in the county budget, provided that such additions or increases are stated separately and distinctly.

B. [~~2~~] The county budget as changed, altered or revised shall be adopted by resolution of the Legislature not later than the seventh day of December. If the Legislature takes no action by December seventh, the budget submitted by the County Executive shall be deemed to be the adopted budget. If the county budget, as submitted by the County Executive, is adopted by resolution of the Legislature with no changes, it shall be deemed to have been adopted without any further action by the County Executive. If, however, the county budget as adopted by the Legislature contains any increases, additions, decreases or deletions, it shall be immediately presented by the Clerk to the Legislature to the County Executive for examination and reconsideration. If the County Executive approves all the increases or additions and the decreases or deletions, he or she shall affix his or her signature to a statement thereof and return the county budget together with such statement to the Clerk of the Legislature, and the county budget, including the increases or additions and the decreases or deletions as part thereof, shall then be deemed to be adopted.

C. [~~3~~] If the county budget, with any increases or additions and decreases or deletions, is not returned by the County Executive to the Clerk to the Legislature with his or her objections within five working days after presentation by the Clerk to the Legislature, it shall be deemed adopted, as changed, altered or revised by the Legislature.

D. [4] If the County Executive objects to any one or more of the increases or additions or the decreases or deletions, the County Executive shall append to the county budget a statement of the increases or additions or the decreases or deletions to which the County Executive objects, setting forth the reasons therefor, and shall, not later than five working days after receipt of the adopted budget from the Clerk to the Legislature, return the county budget with the objections to the Clerk to the Legislature, who shall immediately present them to the Legislature. The Legislature shall thereupon enter the objections upon its records and, not later than the twentieth day of December, proceed to reconsider the increases or additions or the decreases or deletions to which objection is made by the County Executive. If upon such reconsideration the Legislature, by the affirmative vote of at least two-thirds of the total voting power of the Legislature taken to the next highest whole number, votes to approve any such increase, addition or deletion, the county budget, with the changes so approved, together with any changes not so objected to by the County Executive, shall be deemed adopted. If the Legislature by such date fails to act on or approve any such change objected to by the County Executive, then such objections shall become final and the budget shall be deemed adopted as resubmitted by the County Executive.

E. [~~5~~] If any limitation date mentioned in this Article falls on a holiday, Saturday or Sunday, then any time limitations required herein shall be extended to the next business day of the county.

F. [~~6~~] Copies of the county budget as adopted shall be certified by the County Executive and by the Clerk of the Legislature, and such a copy shall be filed in the offices of the County Executive and the Clerk to the Legislature. The budget so certified shall be printed or otherwise reproduced and copies shall be made available to the public at such cost as the Legislature shall deem appropriate.

§ C4.09. Appropriation resolution and tax levy.
Immediately upon the final adoption of the budget, the Legislature shall adopt an appropriation resolution and provide for the raising of taxes required by such budget in the manner and within the time prescribed by law.

§ C4.10. Budget modification after adoption.

A. [~~1~~] The County Executive may, during any fiscal year, transfer part or all of any unit of appropriation within any department, office or unit to another unit of appropriation within such department, office or unit. [~~Written notice thereof shall be given to the Legislature~~.]

B. [~~2~~] The Legislature may, during any fiscal year, transfer part or all of any unit of appropriation from one department, office or unit to another, or transfer part or all of any unit of appropriation for the purpose of establishing or adding to a new unit of appropriation, or change the terms and conditions of the budget. Any such action taken by the Legislature shall be by resolution subject to the provisions of § C2.02 of this Charter.

§ C4.11. Capital Projects Committee.

There shall be a Capital Projects Committee to consider the necessity, priority, feasibility, location, cost and method of financing of all proposed capital projects and to **meet and** prepare at least once annually and submit to the County Executive, not later than the [~~first day of June~~] **fifteenth of September**, a capital plan for the ensuing fiscal year and a proposed capital program for the next six fiscal years. The Capital Projects Committee shall consist of the following or their designees: the County Executive as Chairperson; the Chairperson of the Legislature; **the chairperson of the Planning and Public Works Committee,** the Superintendent of Highways; **the Commissioner of Finance, the Commissioner of General Services** ~~the Commissioner of Planning~~; and such other persons as the County Executive may direct to serve on such Committee.

§C4.12. Execution of Contracts.

A. All contracts up to $100,000 may be executed at the County Executive's sole discretion.

B. All contracts in excess of $250,000 require the approval of the County Legislature.

C. All contracts between $100,000 and $250,000 require either the unanimous approval of the Contracts Committee of the Legislature which shall consist of the Chairperson of the Legislature, the Minority Leader, and the chairperson of the Budget and Finance Committee (or their designees on a per-meeting basis) or the approval of the County Legislature.

D. Amendments to existing agreements shall be treated the same way:

1. All amendments up to an aggregate of $100,000 may be executed at the County Executive's sole discretion.

2. **All aggregate amendments between $100,000 and $250,000 require either the unanimous approval of the Chairperson of the Legislature, the Minority Leader, and the chairperson of the Budget and Finance Committee (or their designees on a per-meeting basis) or the approval of the County Legislature. The chairperson of the Budget and Finance Committee shall provide a monthly report to the County Legislature detailing the contracts approved under this subsection.**

3. **Any amendment adding over $250,000 either alone or in aggregate must receive the approval of the County Legislature. Once the County Legislature votes on an increase of $250,000 or more, it need not vote to approve new amendments until the monetary thresholds are met once again.**

E. Excluded from this section are contracts for services provided solely to or on behalf of the Legislature, which must be executed by the Chair of the Legislature on behalf of the Legislature.

Article V. Department of Planning

§ C5.01. Department of Planning; Commissioner of Planning.

There shall be a Department of Planning headed by a Commissioner of Planning who shall be appointed by and serve at the [~~pleasure~~] **discretion** of the County Executive, subject to confirmation by the Legislature. [~~He or she~~] **The Commissioner of Planning** shall be appointed on the basis of [~~his or her~~] education, professional experience and [~~his or her~~] qualifications [~~for~~] **related to** the duties of the office.

§ C5.02. Powers and duties.

The [~~Commissioner of Planning~~] **County Executive or his or her designee** shall develop a capital program for the county, assist in the planning of all capital projects and exercise all the powers and duties of a County Planning Board as provided in the General Municipal Law or in any other law[~~, and he or she shall perform such other and related duties required by the County Executive~~].

§ C5.03. Planning Advisory Board.

There shall be a Planning Board consisting of nine members appointed by the County Executive for a term of four years, subject to confirmation by the Legislature. [~~Of the members first appointed to the Planning Board, two shall hold office for the term of one year; two for the term of two years; two for the term of three years; and three for the term of four years from and after their appointment~~.] There shall be on the Planning Board at least one resident from each town within the county. [~~If a vacancy shall occur otherwise than by expiration of a term, it shall be filled by appointment for the unexpired term by the County Executive.~~] **The end of a term shall result in an immediate vacancy and there shall be no holdovers from any expired terms. Terms of board members shall be staggered in accordance with a legislative resolution.** The Chairperson of the Park Commission and the Chairperson of the Environmental Management Council shall serve as ex officio members of the Planning Board. The Chairperson of such Board shall be selected by the members of the Board for a term of one year. The Planning Board shall

advise the Commissioner of Planning, the County Executive and the Legislature in matters relating to planning and shall have and exercise such other and related duties required by the Commissioner of Planning [~~and the County Executive~~].

Article VI. Department of Personnel

§ C6.01. Department of Personnel; Commissioner of Personnel.

There shall be a Department of Personnel headed by a Commissioner of Personnel who shall be appointed by the County Executive for a term of six years, subject to confirmation by the Legislature. [~~He or she~~] **The Commissioner of Personnel** shall be appointed on the basis of [~~his or her~~] administrative experience and [~~his or her~~] qualifications [~~for~~] **related to** the duties of the office.

§ C6.02. Powers and duties.

The Commissioner of Personnel shall develop and administer a personnel program for the county and have and exercise all the powers and duties of a Municipal Civil Service Commission as provided in the Civil Service Law in this state and all the powers and duties conferred or imposed upon [~~him or her~~] **the Commissioner** by any other law. [~~He or she shall also perform such other and related duties required by the County Executive.~~]

Article VII. Department of Health

§ C7.01. Department of Health; Commissioner of Health.

There shall be a Department of Health, headed by a Commissioner of Health, who shall be appointed by the County Executive for the term of office for which the County Executive is elected, subject to confirmation by the [~~l~~]**L**egislature. In appointing the Commissioner of Health, the County Executive shall consult with the Board of Health. The Commissioner of Health shall be a physician experienced in public health administration and shall meet the qualification for the responsibilities of [~~his or her~~] office prescribed by the New York State Sanitary Code, or otherwise by the Public Health Law of this state.

§ C7.02. Powers and duties.

Except as otherwise provided in this Charter, the Commissioner of Health shall have and exercise all the powers and duties conferred or imposed upon a County Health Commissioner and upon County Boards of Health by the Public Health Law or any other law. [~~He or she shall perform such other and related duties required by the County Executive.~~]

§ C7.03. Board of Health.

A. There shall be a Board of Health consisting of five members who shall be appointed by the County Executive for a term of five years, subject to confirmation by the Legislature.

B. Of the members first appointed to the Board of Health, one shall hold office for the term of one year; one for the term of two years; one for the term of three years; one for the term of four years; and one for the term of five years from and after their appointment.

C. Two members so appointed shall be physicians.

D. If a vacancy shall occur otherwise than by expiration of a term, it shall be filled by appointment for the unexpired term.

E. The Chairperson of such Board shall be selected by the members of the Board for a term of one year.

F. The Board of Health shall advise the County Executive and the Legislature in matters relating to the powers and duties of the Commissioner of Health.

G. The members of the Board of Health shall further have the power to inspect and review all facilities and programs of the Department of Health, with or without notice to the Commissioner of Health, and may report and make recommendations to the County Executive, County Legislature and Commissioner of Health. All such reports shall be deemed public records and available for inspection at the office of the County Executive at all reasonable times.

H. The Board of Health shall also advise and consult with the Capital Projects Committee with respect to all capital projects necessary for the Department of Health.

[~~The Board of Health shall have and exercise such other and related duties required by the Legislature or the County Executive.~~]

§ C7.04. Medical Examiner.

A. Appointment and qualifications.

[~~1~~] There shall be [~~in the Department of Health~~] a Medical Examiner, who shall be appointed by the County Executive for a term of four years, subject to confirmation by the Legislature. [~~He or she~~] **The Medical Examiner** shall be a physician duly licensed to practice [~~his or her~~] **the** profession in the State of New York and shall be qualified to perform an autopsy and dissect bodies of human beings for the purpose of determining the cause of death.

B. Powers and Duties.

[~~2~~] The Medical Examiner shall make inquiry into unnatural deaths within the county and have and exercise all powers and duties conferred or imposed [~~upon him or her~~] by law [~~and such other and related duties as shall be required by the County Executive~~].

Article VIII. ~~[Department of Hospitals]~~ RESERVED

~~**[§ C8.01. Department of Hospitals; Commissioner of Hospitals.**~~
~~There shall be a Department of Hospitals, headed by a Commissioner of Hospitals who shall be appointed by the County Executive for the term of office for which the County Executive is elected, subject to confirmation by the Legislature. In appointing the Commissioner of Hospitals, the County Executive shall consult with the hospital's Board of Governors. The Commissioner of Hospitals shall have training or experience in hospital administration.~~

~~**§ C8.02. Powers and duties.**~~

~~Except as otherwise provided in this Charter, the Commissioner of Hospitals shall have charge and supervision of any hospital established by the county and shall have and exercise all the powers and duties conferred or imposed by the General Municipal Law or any other law. He or she shall perform such other and related duties required by the County Executive.~~

~~**§ C8.03. Board of Governors.**~~

~~There shall be a Board of Governors consisting of ten members who shall be appointed by the County Executive for a term of five years, subject to confirmation by the Legislature. Of the members first appointed to the Hospital Board, one shall hold office for the term of one year; two for the term of two years; two for the term of three years; two for the term of four years; and three for the term of five years from and after their appointment. At least two, but not more than three, members so appointed shall be physicians, persons licensed in the health professions, or professionals in the field of hospital administration. If a vacancy shall occur otherwise than by expiration of a term, it shall be filled by appointment for the unexpired term. The Chairperson of such Board shall be selected by the members of the Board for a term of one year. The Board shall advise the County Executive and the Legislature in matters relating to the powers and duties of the Commissioner of Hospitals. The members of the Board of Governors shall further have the power to inspect and review all facilities and programs of the Department of Hospitals, with or without notice to the Commissioner of Hospitals, and may report and make recommendations to the County Executive, County Legislature and Commissioner of Hospitals. All such reports shall be deemed public records and available for inspection at the office of the County Executive at all reasonable times. The Board of Governors shall also advise and consult with the Capital Projects Committee with respect to all capital projects necessary for the Department of Hospitals. The Board of Governors shall have and exercise such other and related duties required by the Legislature and the County Executive.~~]

Article IX. Department of Mental Health

§ C9.01. Department of Mental Health; Commissioner of Mental Health.

There shall be a Department of Mental Health, headed by a Commissioner of Mental Health who shall be appointed by the County Executive for the term of office for which the County Executive is elected, subject to confirmation by the Legislature. In appointing the Commissioner of Mental Health, the County Executive shall consult with the Community Services Board. The Commissioner of Mental Health shall meet the qualifications for the responsibilities of [~~his or her~~] office required by the Mental Hygiene Law of this state.

§ C9.02. Powers and duties.

Except as otherwise provided in this Charter, the Commissioner of Mental Health shall have and exercise all the powers and duties conferred or imposed upon a Director of Community Mental Health by the Mental Hygiene Law or any other law. [~~He or she shall perform such other and related duties required by the County Executive.~~]

§ C9.03. Community Services Board.

A. There shall be a Community Services Board and subcommittees, constituted in accordance with the Mental Hygiene Law, whose members shall be appointed by the County Executive, subject to confirmation by the Legislature.

B. The Commissioner of Health and the Commissioner of Social Services shall serve as ex officio members of the Board.

C. The Chairperson of such Board shall be selected by the members of the Board for a term of one year.

D. The Board shall advise the County Executive and the Legislature in matters relating to the powers and duties of the Commissioner of Mental Health.

E. The members of the Board shall further have the power to inspect and review all facilities and programs of the Department of Mental Health, with or without notice to the Commissioner of Mental Health, and may report and make recommendations to the County Executive, County Legislature and Commissioner of Mental Health. All such reports shall be deemed public records and available for inspection at the office of the County Executive at all reasonable times.

F. The Board shall also advise and consult with the Capital Projects Committee with respect to all capital projects necessary for the Department of Mental Health.

[~~The Board shall have and exercise such other and related duties required by the Legislature or the County Executive.~~]

Article X. Department of Social Services

§ C10.01. Department of Social Services; Commissioner of Social Services.

There shall be a Department of Social Services, headed by a Commissioner of Social Services who shall be appointed by the County Executive for a term of five years, subject to confirmation by the Legislature. In appointing the Commissioner of Social Services, the County Executive shall consult with the Social Services Board. The Commissioner of Social Services shall meet the qualifications for the responsibilities of [~~his or her~~] office required by the New York State Board of Social Welfare.

§ C10.02. Powers and duties.

Except as otherwise provided in this Charter, the Commissioner of Social Services shall have and exercise all the powers and duties conferred or imposed by the Social Services Law[~~,~~] or any other law [~~, and shall perform such other and related duties required by the County Executive~~].

Article XI. Department of Highways

§ C11.01. Department of Highways.

There shall be a Department of Highways headed by a Highway Superintendent who shall be appointed by and serve at the [~~pleasure~~] **discretion** of the County Executive, subject to confirmation by the Legislature. [~~He or she~~] **The Superintendent** shall be appointed on the basis of [~~his or her~~] education, professional experience and [~~his or her~~] qualifications [~~for~~] **related to** the duties of the office.

§ C11.02. Powers and duties.

The Superintendent shall exercise the powers and duties provided for by this Charter and applicable law [~~and he or she shall perform such other and related duties required by the County Executive~~].

Article XII. County Clerk

§ C12.01. Election and qualifications.

There shall be a County Clerk who shall be elected by the county at large at a general election, for a term of office in accordance with law, commencing on the first day of January immediately following [~~his or her~~] election. The County Clerk shall, at the time of [~~his or her~~] election and at all times [~~during his or her term of~~] **while in** office, be a qualified elector of the county and shall devote [~~his or her~~] full working time to the duties of the office.

§ C12.02. Powers and duties.

The County Clerk shall have and exercise all powers and duties conferred or imposed [~~upon him or her~~] by law [~~and perform such other and related duties required by the County Executive or the Legislature~~].

Article XIII. Sheriff

§ C13.01. Election and qualifications.

There shall be a Sheriff who shall be elected by the county at large at a general election, for a term of office in accordance with law commencing on the first day of January immediately following [~~his or her~~] election. The Sheriff shall, at the time of [~~his or her~~] election and at all times [~~during his or her term of~~] **while in** office, be a qualified elector of the county and shall devote [~~his or her~~] full working time to the duties of the office.

§ C13.02. Powers and duties.

The Sheriff shall have and exercise all powers and duties which have been or may be conferred or imposed [~~upon him or her~~] by law [~~and perform such other and related duties required by the County Executive or the Legislature~~].

§ C13.03. Undersheriff.

Within ten days after entering upon the duties of the office, the Sheriff [~~shall~~] **may** appoint an Undersheriff to serve at the [~~pleasure~~] **discretion** of the Sheriff as provided by law **and may appoint additional Undersheriffs as the Sheriff determines is needed, subject to any budgetary amendments required by law to create new positions**.

Article XIV. District Attorney

§ C14.01. Election and qualification.

There shall be a District Attorney who shall be elected by the county at large at a general election, for a term of office in accordance with law commencing on the first day of January immediately following [~~his or her~~] election. The District Attorney shall, at the time of [~~his or her~~] election and at all times [~~during his or her term of~~] **while in** office, be a qualified elector of the county, duly admitted to the practice of law in this state, and shall devote [~~his or her~~] full working time to the duties of the office.

§ C14.02. Powers and duties.

The District Attorney shall conduct prosecutions for crimes and offenses and have and exercise all powers conferred or imposed [~~upon him or her~~] by law.

Article XV. Public Defender

§ C15.01. Appointment and qualifications.

A. There shall be a Public Defender who shall be appointed by the County Executive for the term of the County Executive, subject to confirmation by the Legislature.

B. The Public Defender shall, at the time of [~~his or her~~] appointment and at all times during [~~his or her~~] the term of office; [,]

1. be a qualified elector of the county;

2. be duly admitted to the practice of law in this state for at least ten (10) years prior to appointment;

3. remain duly admitted to the practice of law in the state at all times; and

4. devote full working time to the duties of the office.

[~~There shall be a Public Defender who shall be appointed by the County Executive for the term of the County Executive, subject to confirmation by the Legislature. The Public Defender shall, at the time of his or her appointment and at all times during his or her term of office, be a qualified elector of the county and shall devote his or her full working time to the duties of the office. He or she shall have been duly admitted to the practice of law in this state for at least five years prior to such appointment and at all times during his or her term of office~~.]

§ C15.02. Powers and duties.

The Public Defender shall represent, without charge, at the request of the defendant or by order of the court with the consent of the defendant, each indigent defendant who is charged with a crime in the county. [~~He or she~~] **The Public Defender** shall have and exercise all powers or duties conferred or imposed [~~upon him or her~~] by law.

Article XVI. County Attorney

§ C16.01. Appointment and qualifications.

There shall be a County Attorney, who shall be appointed by and serve at the [~~pleasure~~] **discretion** of the County Executive, subject to confirmation by the Legislature. The County Attorney shall, at the time of [~~his or her~~] appointment and at all times [~~during his or her term of~~] **while in** office, be a qualified elector of the county. [~~He or she~~] **The County Attorney** shall also have been duly admitted to the practice of law in this state **for at least ten (10) years at the time of appointment** and at all times [~~during his or her term of~~] **while in** office.

§ C16.02. Powers and duties.

The County Attorney shall be the legal advisor of the county and all county agencies on civil matters and shall prosecute or defend all actions or proceedings of a civil nature brought by or against the county. [~~He or she~~] **The County Attorney** shall have and exercise such other and related powers and duties as may be conferred or imposed [~~upon him or her~~] by law [~~and perform such other related duties required by the County Executive or the Legislature~~].

Article XVII. Department of Finance

§ C17.01. Department of Finance; Commissioner of Finance.

There shall be a Department of Finance headed by a Commissioner of Finance who shall be appointed by the County Executive, subject to confirmation by the County Legislature, on the basis of [~~his or her~~] **the Commissioner's** experience in financial administration and shall serve at the [~~pleasure~~] **discretion** of the County Executive[~~, except that the person serving as County Treasurer immediately prior to the time this Charter takes effect shall serve as Commissioner of Finance until December 31, 1987; the elective office of County Treasurer shall be abolished as of that date, and thereafter, the Commissioner of Finance shall be appointed as provided herein~~].

§ C17.02. Commissioner of Finance; powers and duties.

Except as otherwise provided by this Charter, the Commissioner of Finance shall have and exercise all the powers vested in and perform all of the fiscal duties of the chief fiscal officer of the county. The Commissioner of Finance shall:

A. [~~a~~] Perform all duties, including, but not limited to, the collection of taxes, accounting, and any other duties required by law, to be performed by a County Treasurer.

B. [~~b~~] Perform all duties in relation to the extension of taxes and the issuing of tax bills [~~heretofore performed by the Clerk to the Legislature~~].

C.[~~e~~] Audit and certify for payment all lawful claims or charges against funds for which the county is responsible.

Article XVIII. County Auditor

§ C18.01. [~~County Auditor.~~] Appointment and qualifications.

There shall be a County Auditor who shall be appointed by the County Executive for the term of office for which the County Executive is elected, subject to confirmation by the Legislature. [~~He or she~~] **The County Auditor** shall be appointed on the basis of [~~his or her~~] experience and qualifications for the duties of [~~his or her~~] **the** office.

§ C18.02. Powers and duties.

Except as otherwise provided in this Charter, the County Auditor shall audit the financial records and accounts of all units of county government charged with any duty relating to the funds of the county or for which the county is responsible. [~~The Auditor shall perform such other and related duties required by the County Executive.~~]

Article XIX. [~~Commission on~~] **Department of Human Rights**

§ C19.01. Commissioner of Human Rights.

A. There shall be a Commissioner of Human Rights who **shall be the administrative head of the Department of Human Rights and** shall be appointed by the County Executive for the term of office for which the County Executive is elected, subject to confirmation by the Legislature. The Commissioner shall be appointed on the basis of experience and qualifications for the duties of the office.

B. Except as otherwise provided in this Charter, the Commissioner of Human Rights shall have and exercise all the powers and duties conferred or imposed by the General Municipal Law **Article 12-D §239-r** or any other law [~~and shall perform such other and related duties required by the County Executive~~].

§ C19.02. [~~Powers and duties.~~

~~§ C19.03.~~] Commission on Human Rights.

A. **Pursuant to New York State General Municipal Law Article 12-D, there** ~~There~~ shall be a Commission on Human Rights **consisting of thirteen (13) members whose** ~~constituted in accordance with the General Municipal Law or any other law; provided, however, that~~ its members shall be appointed by the County Executive, subject to confirmation by the Legislature**, and shall serve for a term of five (5) years. The end of a term shall result in an immediate vacancy and there shall be no holdovers from any expired terms. Terms of board members shall be staggered in accordance with a legislative resolution.**

B. The Commission shall exercise all the powers and duties [~~required by~~] **conferred or imposed by the General Municipal Law Article 12-D §239-q or any other** law [~~and such other and related duties required by the County Executive~~].

Article XX. General and Transitional Provisions

§ C20.01. Existing laws continued.

Except as otherwise provided in this law, all existing state, county, local and other laws or enactments, including special acts having the force of law, shall continue in force until lawfully amended, modified, superseded or repealed.

§ C20.02. Continuation of authority.

The performance of functions pursuant to the provisions of this law shall be deemed and held to constitute a continuation thereof for the purpose of succession to all rights, powers, duties and obligations attached to such functions. Any proceedings or other business undertaken or commenced prior to the effective date of this law may be conducted and completed by the county officer or administrative unit responsible therefor under this law or any administrative code adopted thereunder. **Amendments shall have no retroactive effects unless future application of the prior act is contrary to the provisions of the amendment.**

§ C20.03. Civil service rights continued.

The civil service rights of all county employees and their beneficiaries shall not be affected by this law. The civil service rights of all employees transferred in any case authorized by this law shall be continued as provided by the Civil Service Law.

§ C20.04. Transfer of functions, duties and personnel; other county departments, boards, offices and agencies.

[~~a~~] **A.** Except as herein specifically otherwise provided, all county departments, boards, offices and units shall continue as provided by law, except that the members thereof required to be appointed by county government shall be appointed by the County Executive as provided in Article **III**.

[~~b~~] **B.** The term of office of the personnel officer shall not be affected by this Charter and shall remain as provided in § 15 of the Civil Service Law. The term of office of the Commissioner of Social Services shall not be affected by this Charter and shall remain as provided in § 116 of the Social Services Law.

[~~c~~] **C.** Any county officer **duly** appointed for a fixed term prior to the effective date of [~~this~~] **the latest amendment to this** Charter shall continue [~~his or her~~] **in** office for the balance of the unexpired term.

[~~d~~] **D**. Nothing contained in this Charter is intended to constitute a transfer of any function or duty to or from any town or village or an abolition of any office, department or unit of government of a town or village in the county. If any provision of this Charter is construed by any court of competent jurisdiction to constitute any such transfer or abolition, such provision shall be deemed to be optional as it affects the towns or villages and be effective only upon approval by the governing boards of such towns or villages.

[e] **E**. Except as otherwise provided in this Charter, all deputies, officers or employees of each department, office or other administrative unit shall be appointed by the head thereof, subject to appropriate provisions of the Civil Service Law.

§ C20.05. Charter clarification.

If any provision of this law is not clear or requires elaboration in its application to the county, the County Legislature may interpret such provision in a local law not inconsistent with the provisions of the Municipal Home Rule Law. Where any question arises concerning the transition to a County Charter Law which is not provided for herein, the County Legislature may provide for such transition by a local law not inconsistent with the provisions of the Municipal Home Rule Law.

§ C20.06. Amendment of Charter Law.

A. This Charter may be amended or repealed in whole or in part in accordance with the provisions of the Municipal Home Rule Law;

B. [~~p~~] **P**rovided however, that any amendment or proposal to repeal in whole or in part which is subject to a permissive referendum under the Municipal Home Rule Law shall require a mandatory referendum before it becomes operative to affect this Charter**;** [~~, and~~]

C. [~~f~~] **F**urther provided that any amendment or repeal of Articles **I, II, III, IV, XVIII,** and **XX** shall be subject to a mandatory referendum to be submitted for the approval of the electors at the next general or special election in all towns of Rockland County held not less than sixty (60) days after the adoption thereof; and

D. [~~f~~] **F**urther provided that any amendment or repeal which is not subject to mandatory referendum by the terms of this section shall not take effect until at least forty-five (45) days after its adoption; nor until approved by the affirmative vote of a majority of the qualified electors of Rockland County voting on a proposition for its approval if within forty-five (45) days after its adoption there be filed with the Clerk to the Legislature a petition protesting against such amendment or repeal, signed and authenticated as herein required by qualified electors of Rockland County, registered to vote therein at the last preceding general election, in number equal to at least ten (10%) per centum of the total number of votes cast for governor at the last gubernatorial election in Rockland County.

1. If such petition be so filed, a proposition for the approval of such amendment or repeal shall be submitted at the next general or special election in all towns of Rockland County held not less than sixty (60) days after the filing of such petition.

2. The petition may be made upon separate sheets, and the signatures to each sheet shall be signed and authenticated in the manner provided by the Election Law for the signing and authentication of designating petitions so far as applicable.

3. The several sheets so signed and authenticated when fastened together and offered for filing shall be deemed to constitute one petition.

4. The Clerk shall examine each such petition so filed with him or her and shall, not later than thirty (30) days after the date of its filing, transmit to the legislative body a certificate that he or she has examined it and has found that it complies or does not comply, as the case may be, with all the requirements of law.

5. If within thirty (30) days after the filing of such a petition a written objection thereto be filed with the Supreme Court of Rockland County, such Court shall determine any question arising thereunder and make such order as justice may require. Such proceeding shall be heard and determined in the manner prescribed by Article 78 of the Civil Practice Law and Rules.

§ C20.07. Separability.

If any provision of this County Charter Law shall be adjudged by any court of competent jurisdiction to be invalid, such judgment shall not affect, impair or invalidate the remainder thereof but shall be confined in its operation to the particular provisions involved.

§ C20.08. County Charter Law to be liberally construed.

This County Charter Law shall be liberally construed to achieve its objectives and purposes.

~~**[§ C20.09. Mandatory referendum and effective date.**~~
~~This local law shall be subject to a mandatory referendum and shall be submitted for the approval of the electors of the County of Rockland at the next general election to be held on November six, nineteen hundred eighty-four. In the event that this local law is approved by a majority of the electors voting thereon, the provisions of this local law providing for the election of County Executive shall become effective, and there shall be an election for the office of County Executive to be held at the next general election to be held on November five, nineteen hundred eighty-five. The provisions of the remainder of this local law shall be effective of January first, nineteen hundred eighty-six.]~~

Section 3. Effective date.
This local law shall take effect immediately upon certification by the Board of Elections of its approval by a majority of the qualified voters at the general election to be held November 3, 2026, and filing with the Secretary of State.

Deleted material is [bracketed] and ~~struck through~~
New Material is **Bold** and underscored

LG -2025-40-ll
ELY
4/30/25, 5/6/25, 5/13/25, 5/20/25, 5/27/25, 6/5/25, 6/6/25
LG-2026-24-ll
ELY
2/4/26, 3/10/26, 3/26/26, 4/22/26
TH
5/10/26
ELY
5/19/26, 5/21/26, 5/26/26, 5/27/26, 6/4/26, 6/8/26
6/10/2026, 6/17/2026/dmg